

the search division had to be discerning in the use of its discretionary power so as to ensure that the search was in complete accordance with the subject-matter of the patent application (see R. 44(1) EPC 1973), i.e. the invention, even if the essential features were not all defined in the claims at the time of search but were disclosed for example in the description or drawings. In the case in hand, the applicants were never informed of exactly what subject-matter was searched, which meant that the examining division and board of appeal were also without any information in this regard. It was therefore impossible – since negative proof is out of the question – to establish what subject-matter went "unsearched" under R. 86(4) EPC 1973. This rule therefore had to be interpreted using alternative means such as the preparatory documents or the documents published regarding the adoption of the rule. The board came to the conclusion that amended claims may only be refused on the basis of R. 86(4) EPC 1973 if the subject-matter of the claims filed originally and that of the amended claims was such that, had all claims originally been filed together, a further search fee would have been payable – on top of the search fee payable in respect of the claims actually filed at the outset – in respect of the amended claims, relating to a different invention within the meaning of R. 46(1) EPC 1973. The board noted that R. 86(4) EPC 1973 must be interpreted so as to fairly balance the objective of this rule, namely the EPO's interest in collecting, in return for services rendered, search and examination fees, and the fundamental right conferred by the EPC on the applicant to make amendments at least once to the description, claims and drawings that prove necessary during the grant procedure. The board pointed out that the intention and purpose of R. 86(4) EPC 1973 and the interference with the applicant's fundamental right to amend the application at least once called for a strict interpretation of R. 86(4) EPC 1973 (see also T 141/04). It held that R. 86(4) EPC 1973 did not apply when the applicant had not paid the search fee in respect of a non-unitary invention relating to the originally filed claims in spite of being invited to do so under R. 46(1) EPC 1973. In that case, the application could not be examined further, and a divisional application would have to be filed if protection were sought (see G 2/92, OJ 1993, 591). The boards in T 319/96 and T 631/97 (OJ 2001, 13) made a clear distinction between applying the provisions of R. 86(4) EPC 1973 and a situation where search fees were not paid in spite of an invitation to do so under R. 46(1) EPC 1973.

In T 789/07 the board held that in order to search a claimed feature completely – as required by Art. 92 EPC and in line with the Guidelines – the search division must as a rule ascertain how the feature is to be interpreted in the light of the description and drawings. Only then can it arrive at a reasoned assessment about the amendments likely to be made to the claims during examination proceedings and within the framework of the original disclosure. This interpretation also forms the basis for comparison, with a view to R. 86(4) EPC 1973, with the originally claimed invention or group of inventions. The board also took the view that a claimed feature falling within the scope of the search must be regarded for R. 86(4) EPC 1973 purposes as searched, even if it was not in fact searched in a specific case (see also T 2334/11, T 1679/10, T 345/13, T 1503/13). In T 1679/10 the board added that it would go too far to construe the Guidelines as meaning that it would be sufficient to have one broad independent claim in the application as filed, with no dependent claims, in order to be entitled to a search extending to all the features of a large number of embodiments covered by the wording of that claim.

In T.264/09 the board stated that if a feature which had not been searched, and which further defined an element which was already part of a claim which had been searched, was taken from the description and added to this claim in order to overcome an objection under the EPC, e.g. lack of inventive step, this did not result in a claim which had been amended such that it related to unsearched subject-matter which did not combine with the originally claimed invention to form a single general inventive concept (see also T.2334/11, T.1503/13). The board thereby followed the well-established case law on the interpretation of R.86(4) EPC 1973 (see e.g. T.708/00, OJ 2004, 160; T.274/03; T.141/04), it being noted that R.86(4) EPC 1973 had the same wording as R.137(4) EPC (as in force at the date the examining division took its decision), which, as from 1 April 2010, is included in R.137(5) EPC. The board noted that the Guidelines were drafted accordingly; these explicitly mentioned the possibility of carrying out an additional search in connection with the examination of amended claims.

In T.2029/13 the board was of the view that amended claims 1 to 13 did not lack unity of invention, and that consequently the search division should also have searched claims 7 to 13 (second group of inventions) of the supplementary European Search Report, and the examining division should not have raised an objection under R.137(5) EPC (version that entered into force on 1 April 2010) against the second and third auxiliary requests underlying the decision under appeal on the grounds that claim 1 of those requests comprised unsearched features. Since the claims of the present main request and first auxiliary request comprised features relating to claims 7 to 13 of the SESR, which should have been searched but were not, the board considered it appropriate to remit the case to the examining division for further prosecution under Art.111(1) EPC to perform an additional search for the combination of features of claims 7 to 13 and continue substantive examination on that basis.

In T.1520/14 the board accepted that there was no obligation on the search division to extend the search to a feature mentioned in the description where there was no objective reason to expect that future amendments might be directed to precisely this feature. However, where the description repeatedly stresses the utility of the invention for a particular purpose or in a particular technical area, it was clearly foreseeable that the invention may ultimately be claimed in relation to this purpose or technical area. The board found that the position of the search division that claim 1 was fully searched, but that the search did not extend to what was repeatedly presented in the description as the principal area of application, was not reasonable and not in conformity with the requirements of Art.92 EPC. It was equally unreasonable for the examining division to confirm the correctness of this position.

5.3.3 Subject-matter of amendment not combining with the originally claimed invention

In T.442/95 the appellants submitted new claims, based on subject-matter which did not appear in the claims as filed. They submitted that the description of this newly claimed subject-matter was to be found in the description. In the board's judgment, the subject-matter claimed had not been searched and did not combine with the originally claimed and searched groups of inventions to form a single general inventive concept. There was no need at this stage to investigate whether the application as filed provided support for such

a claim, because under R. 86(4) EPC 1973 the claim was not admissible. The only path open to the appellants was to pursue the subject-matter of said claim in the form of a divisional application.

In T. 353/03 the examining division had stated in its decision of refusal that the new feature in claim 1 had not been searched and that, for that reason, the application was refused according to Art. 97(1) in conjunction with R. 86(4) EPC 1973. The board found that in its decision the examining division did not take into account the fact that R. 86(4) EPC 1973 mentioned another condition which also had to be fulfilled for amended claims to be rejected, namely that the unsearched subject-matter did not combine with the originally claimed invention to form a single general inventive concept (lack of unity). There was no discussion in the appealed decision as to why the subject-matter of new claim 1 was not in unity with original claim 1. The board came to the conclusion that the appealed decision was not reasoned within the meaning of R. 68(2) EPC 1973.

In T. 333/10 the board found that the subject-matter of amended claim 1 could not be considered to have been searched and it did not combine with any of the originally claimed inventions to form a single general inventive concept. The appellant referred to T. 2334/11 and argued that, in a case like the one before it, no "a posteriori" unity judgment was to be made; rather, it was to be generally examined if the added feature taken from the description combined with the originally claimed invention to form a single general inventive concept focused on in the claims and description as originally filed. The board noted that the claims as originally filed had been found to lack unity by the search division. It also stated that the case in hand concerned the replacement of some of the features from the combination of features on which the search was based by features which might not be considered as corresponding special technical features within the meaning of R. 44(1) EPC and which could not be expected to constitute a pure limitation of one of the searched inventions. In contrast, T. 2334/11 concerned a factual situation in which added features restricted the scope of the searched subject-matter. This difference had also been addressed in T. 2334/11, which essentially stated that the case law concerning R. 137(5) EPC distinguished between cases in which the claimed subject-matter was substantially changed, in particular by replacement or omission of a feature in a claim, and which could give rise to an objection under R. 137(5) EPC, and cases which concerned the pure limitation or concretisation of a claim by adding a feature disclosed in the application as originally filed, and which did not normally cause lack of unity with the originally claimed invention within the meaning of R. 137(5) EPC. In the case in hand, the board did not see a limitation or concretisation of any of the four inventions which had initially been searched and which could have been pursued by the appellant. The board noted that T. 2334/11 could not be understood to the effect that the amendment of an independent claim by a feature extracted from the description was generally admissible under R. 137(4) EPC if the subject-matter of the independent claim had been searched and lacked novelty with respect to a prior-art document. Instead, the board in T. 2334/11 emphasised that – in such cases – it always had to be examined whether the added feature was linked to the general inventive idea that can be deduced from the claims and description as originally filed. Hence, the amended set of claims was not admissible.

5.4. Criteria for amendments to be allowable under R. 137(5) EPC

The question concerning the criteria to be used for the proper application of R. 137(5) EPC has been dealt with in various decisions of the boards of appeal.

5.4.1 Amendment not affecting the notion of unity of invention

A claim may be limited by inclusion of additional features, provided the resulting combination was directly and unambiguously disclosed in the application as originally filed in an explicit or implicit manner and does not relate to an invention which was not searched (Guidelines H-V, 3.2 – March 2022 version).

In T 708/00 (OJ 2004, 160) the board held that under R. 86(4) EPC 1973, amended claims could only be refused if the subject-matter of the claims filed originally and that of the amended claims was such that, had all the claims originally been filed together, a further search fee would have been payable – on top of the search fees payable in respect of the claims actually filed at the outset – in respect of the amended claims, relating to a different invention within the meaning of R. 46(1) EPC 1973 (see also T 319/96; T 631/97, OJ 2001, 13, T 1473/13). It noted that a subsequent amendment to limit the subject-matter of the main claim by additional features disclosed in the application as filed did not generally affect the notion of unity of invention under either R. 86(4) or 46(1) EPC 1973 and that it was normal for an applicant to make such an amendment in respect of an objection to the patentability of the subject-matter in unlimited form. See also T 2334/11.

In T 274/03 it was however made clear that certain conditions had to be satisfied for an amendment not to generally affect the notion of unity of invention. Thus, this notion was not affected, and therefore no post-search switching of subject-matter was involved by the amendment, if for instance features were added from the description to further define an element that was already a feature of the original main claim. See also T 1394/04.

In T 2334/11 the board held that what generally had to be ascertained for the purposes of applying R. 137(5) EPC where an original claim was amended by adding a feature was whether the added feature could be regarded as falling under the original general inventive concept as established in the light of the claims and description as filed (see T 1640/07), and not whether the originally claimed subject-matter and the subject-matter defined in the amended claim withstood an assessment of unity a posteriori. It found that one of the ideas underlying the case law on application of R. 137(5) EPC was that, while amendments to claimed subject-matter which considerably altered the essence or nature of the invention – especially through replacement or omission of features in a claim (see T 442/95, T 274/07) – might occasion an objection under R. 137(5) EPC, the mere limitation or the more specific drafting or supplementing of a claim by inclusion of a feature disclosed in the application as filed, in order, for example, to overcome an objection of lack of clarity, novelty or inventive step, generally did not result in a lack of unity for the purposes of R. 137(5) EPC. See also T 1503/13, T 820/15.

In T 1394/04 the board noted that careful consideration of the very nature of the added feature was necessary in order to determine whether the amendment lead to a situation

where lack of unity of inventive concept between the original main claim and the later claimed subject-matter arose. Such a situation in the context at issue would necessarily entail an implicit finding of lack of unity "a posteriori" (with reference to T. 274/03) and according to the Guidelines this form of objection to lack of unity should be the exception. The board also noted that it could not be excluded that such a situation could arise as a consequence of later amendments supported solely by the description. In fact, it may occur that the description of the application contains a further general inventive concept, distinct from that underlying the main claim and its dependent claims, if any, but not clearly identified or declared as such in the description. In such a case, if the subject-matter of the main claim based on the first inventive concept had to be amended, on account of a lack of novelty resulting from too broad terms used in the wording, any amendment of the claim pertaining exclusively to said further inventive concept could justify an objection of lack of unity "a posteriori". This example elucidates that situations may actually occur where the amendment of the main claim, whose subject-matter lacks novelty, based on features supported exclusively by the description, may affect the notion of unity of the invention. Although such situations occur very rarely in practice, as already noted above, in such cases R. 86(4) EPC 1973 would have to be applied in order to avoid a possible circumvention of Art. 82 EPC 1973. In the case in hand however it was clear that, much the same way as in T. 274/03, the introduced amendment feature merely constituted a further specification of original features of the claim which were essential to the invention. This constituted an essential aspect of the invention. Therefore, no lack of unity pursuant to R. 86(4) EPC 1973 in conjunction with Art. 82 EPC 1973 could be found.

In T. 2021/15 the board held, following T. 708/00, that when rejecting amended claims as inadmissible under R. 137(5) EPC, it was not enough to show that an objection of lack of unity would have arisen if the amended claims had been part of the original claim set. It must be shown that the amended claim lacked unity with all claims in the original claim set, because each claim was part of the originally claimed "group of inventions". In other words, if there was unity with at least one of the original claims, R. 137(5) EPC (first sentence) did not apply.

In T. 1866/15 the board agreed with the general statement that, in order to assess whether or not amended claims fulfilled the requirements of R. 137(5) EPC, first sentence, it needed to be established whether or not an objection of lack of unity would have been raised if the amended claims had been present in the set of claims on file at the time of the search. The board also agreed with the statement from the Guidelines that "an objection under Rule 137(5), first sentence, would [...] arise if a technical feature taken from the description which has an effect unrelated to the effect(s) of the features of the originally claimed invention(s) were added to a claim" (see Guidelines, H-II, 6.2, March 2021 version) insofar that the effect of an originally claimed invention could be that of a feature of a dependent claim. However, it stated that if an amendment introduced a feature with an effect entirely unrelated to the effects of the original claims, this might well be a sound basis for the examining division to deny its consent under R. 137(3) EPC.